

RIGHTS OF ADULT/ELIGIBLE STUDENTS

- A. Definition. An eligible student is a student who has reached age 18.
- B. Rights of Eligible Students, Generally. Subject to, and notwithstanding, applicable federal or state law that otherwise provides for continued parental rights after their students reach the age of 18, students who have attained the age of 18 may act in place of their parents/guardians in cases in which parental permission is required. All eligible students are otherwise subject to all applicable School Board policies and regulations, as well as the rules and regulations of their school.
- C. Declaration of Intent to Exercise Eligible Students' Rights and Responsibilities. Upon reaching age 18, Loudoun County Public Schools (LCPS) students may choose to exercise their rights and responsibilities as eligible students by completing the [Adult/Eligible Student Declaration Form](#). This form will be made available at each high school where school counseling staff, or other designees, will notify students about the form. While such rights otherwise transfer exclusively to eligible students, without any requirement of parent/guardian notification or consent, students are nevertheless encouraged to consult with their parents/guardians prior to completing such Declaration Form.
- The Declaration Form must be signed by the student and principal or designee. A copy of the fully executed form shall be retained in the student's education record and copies will be provided to the eligible student and their parents/guardians. The provisions of the Declaration shall remain in force until the student graduates or until the principal is notified in writing that the student wants to withdraw their declaration.
- D. Effect of Signed Declaration for Eligible Students and Their Parents/Guardians. A signed Declaration does not alleviate eligible students' parents/guardians of their responsibilities under Virginia law to assist the school in enforcing the LCPS Code of Conduct and/or compulsory attendance standards. Though eligible students are responsible for their own attendance, school officials will continue to make the necessary efforts to notify a student's parents/guardians of the student's absences, consistent with Virginia law and LCPS regulations. This includes involvement of attendance officers.
- E. Access to Student Records. In accordance with [Policy 8630](#), while generally, Parents/guardians of eligible students who have notified LCPS of their intent to act in place of their parents/guardians no longer have the right to inspect and review their students' records without consent of the eligible students, LCPS may choose to provide the records to such students' parents/guardians, without the eligible students' consent, if such students remain a dependent, as defined in Section 152 of the Internal Revenue Code of 1986.

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F. Disciplinary Records. LCPS school officials will continue to notify parents/guardians about disciplinary matters involving an eligible student, as required by Virginia law.

G. Eligible Students with Disabilities. For eligible students with disabilities, unless otherwise provided for under federal and state special education laws, a student shall be presumed to be a competent adult upon reaching age 18, and thus all procedural safeguards and other rights afforded to parents/guardians of an eligible student with a disability transfer to the eligible student. However, LCPS will continue to send required notices to the eligible student's parents/guardians, in addition to the eligible adult Rights ostudent. Although such educational rights will otherwise transfer from the parents/guardians to the eligible student upon the student reaching the age of majority, procedures exist for appointing the parents/guardians or other appropriate individuals to represent the educational interests of such students throughout their eligibility for special education and related services if those students are determined not to have the ability to provide informed consent with respect to their educational program.

[Former Policy 5-5]
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Current Revision: 9/12/23

Leg. Refs.: [20 U.S.C. § 1232g](#), [34 C.F.R. Part 99](#); Va. Code § [22.1-289\(D\)](#); [Section 152 of the Internal Revenue Code of 1986](#); 8 VAC 20-81-180
Cross Ref.: [Policy 8630](#).